

8. 9:00 AM CASE NUMBER: C24-03411

CASE NAME: JULIE ROMANOWSKI VS. AVI ELIAHU

*HEARING ON MOTION IN RE: BIFURCATE TRIAL

FILED BY: ELIAHU, AARON

TENTATIVE RULING:

Off calendar. (See Minutes of June 17, 2026 summary judgment hearing.)

9. 9:00 AM CASE NUMBER: C25-03334

CASE NAME: DAVID CHEW VS. VETERINARY EMERGENCY GROUP,

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: VETERINARY EMERGENCY GROUP,

TENTATIVE RULING:

Before the Court is Defendants Veterinary Emergency Group (“VEG”), Melissa, Ogg, D.V.M., and Rosella To, D.V.M.’s (collectively “Defendants”) demurrer. The demurrer relates to Plaintiffs David Chew and Jean Lee’s (collectively “Plaintiffs”) Complaint for (1) negligence (veterinary malpractice); (2) trespass to chattels; (3) breach of bailment; (4) breach of contract; (5) intentional infliction of emotional distress; (6) intentional misrepresentation; and (7) fraudulent concealment.

Defendants demur to all seven causes of action on the ground that they are uncertain pursuant to Code of Civil Procedure section 430.10(f) in that they violate California Rules of the Court rule 2.112 by failing to identify which of the Defendants the claims are against. Defendants also demur to Plaintiffs second through seventh causes of action pursuant to Code of Civil Procedure section 430.10(e), on the ground that they fail to state facts sufficient to constitute causes of action.

Plaintiffs oppose Defendants’ demurrer on the grounds that (1) Plaintiffs’ causes of action are directed at all Defendants; (2) Defendants’ demurrer ignores the plainly alleged facts and the law regarding each cause of action; and (3) Defendants attempt to litigate factual issues prematurely.

For the following reasons, Defendants’ demurrer is **SUSTAINED IN ITS ENTIRETY WITH LEAVE TO AMEND**.

Plaintiffs have 15 days from the date of entry of this order to file and serve any amended pleading.

I. Factual Allegations

This case arises out of a dispute over allegedly negligent veterinary medical care.

Plaintiffs David Chew and Jean Lee were the owners of an 11-year-old French Bulldog named Zoë. (Initial Complaint (“Compl.”) at 2:5-6.) On November 13, 2024, Zoë presented to Veterinary Emergency Group in San Ramon, California, for labored breathing. (*Id.* at 3:5-6.) Plaintiffs’ parents were pet sitting Zoë at the time of her presentation to VEG as Plaintiffs were out of the country, however Plaintiffs returned quickly upon learning of Zoë’s condition. (*Id.* at 3:9-11.) Despite initially being out of the country, Plaintiffs were in direct contact with veterinary staff at VEG such that they made all care decisions. (*Ibid.*)

Upon her arrival to VEG, staff allegedly diagnosed Zoë with possible pneumonia, assessed her condition as “critical,” and recommended euthanasia. (Compl. at 3:6-9.) VEG staff allegedly communicated to Plaintiffs that there was fluid in Zoë’s lungs of an unknown nature, though it was “likely a recurrence of her prior cancer.” (*Id.* at 3:12-14.) Plaintiffs allege that this presumption was later proved to be false. (*Ibid.*)

Plaintiffs allege that “[i]n coordination with ZOË’s primary veterinary team, it was determined that ZOË should be transferred from VEG to a specialty hospital as was medically appropriate for her condition.” (Compl. at 3:15-17.) The Complaint does not clarify whether Defendants were involved in the “coordination” with Zoë’s primary veterinary team, but states that “[d]espite this knowledge and discussion, VEG staff, including TO and OGG, strongly discouraged the transfer and refused to facilitate it, stating that ZOË would not survive transfer.” (*Id.* at 3:17-18.)

Zoë spent a week at VEG, during which time Plaintiffs repeatedly expressed concerns about the care she was receiving. (Compl. at 3:19-20.) Among the concerns they expressed was that they believed Zoë’s bloodwork results suggested that doubling her intravenous fluid intake was contraindicated. (*Id.* at 3:20-22.) Plaintiffs state that they are not trained in veterinary medicine, nor do they have any medical knowledge. (*Id.* at 11:5-6.) Plaintiffs allege that their concerns were met with dismissiveness from VEG, Dr. Ogg, and Dr. To. (*Id.* at 3:23-24.)

Plaintiffs further allege that, “[a]fter consistent requests from Plaintiffs, ZOË’s primary veterinary team, and oncologist, the attending veterinarian Dr. TO, began contacting other facilities for transfer.” (Compl. at 3:25-28.) Plaintiffs allege that Defendants “purposely misled” transfer hospitals about Zoë’s status, characterizing her as too unstable for transfer. (*Id.* at 3:27-28, 9:10-12.)

Plaintiffs allege that when Zoë was eventually transferred, the veterinarians at the transfer hospital diagnosed her with fluid overload, water retention, and kidney damage, all of which they allegedly attributed to excessive intravenous fluid administration at VEG. (Compl. at 4:3-6.)

Zoë was ultimately unable to recover from her illness and died. (Compl. at 4:7-8.)

Plaintiffs filed suit in this case on November 12, 2025.

II. Meet and Confer

Prior to filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading subject to demurrer at least five days before the date a responsive pleading is due. (Code Civ. Proc., § 430.41.) Defendants met their statutory burden when they met telephonically with Plaintiffs’ counsel on February 11, 2026, to discuss the substance of Defendants’ objections as further stated in the instant demurrer. (Declaration of Lauren B. Fazio in Support of Defendants Veterinary Emergency Group, Melissa Ogg, DVM, and Rosella To, DVM’s Demurrer to Plaintiffs’ Complaint (“Fazio Demurrer Dec.”) ¶ 2.)

III. Legal Standard

“A demurrer tests the sufficiency of the complaint by raising questions of law.” (*Schmidt v. Foundation Health* (1995) 35 Cal.App.4th 1702, 1706.) The court “treat[s] the demurrer as admitting

all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer does not test the truth or accuracy of the facts alleged in the complaint; the court assumes the truth of all properly pleaded factual allegations and those which arise by reasonable implication. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203; *Shurpin v. Elmhirst* (1983) 148 Cal.App.3d 94, 98.)

A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) “[P]laintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 496.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Where a complaint contains substantive factual allegations sufficiently apprising the defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or leave to amend granted. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.)

It is an abuse of discretion to deny leave to amend on demurrer if there is a reasonable possibility that the defect can be cured by amendment. (*Blank, supra*, 39 Cal.3d at 318; *Salazar v. Target Corp.* (2022) 83 Cal.App.5th 571, 576-577.) “Where the complaint is defective, ‘[in] the furtherance of justice great liberality should be exercised in permitting a plaintiff to amend his complaint...’” (*Scott v. Indian Wells* (1972) 6 Cal.3d 541, 549 (citations omitted).) This is especially so with respect to a party’s initial complaint. (*City of Torrance v. Southern California Edison Co.* (2021) 61 Cal.App.5th 1071, 1091.)

A demurrer tests the sufficiency of the complaint and is confined to the face of the pleading and matters subject to judicial notice. (Code Civ. Proc., § 430.30(a); *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; *SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.)

Before turning to the individual causes of action, the Court notes the scope of its review. In opposition, Plaintiffs rely in part on factual assertions concerning Defendants’ advertising and public representations drawn from material outside the Complaint. (Opp. at 10:18-22 & fn. 1.) That material is not alleged in the Complaint and is not a proper subject of consideration on demurrer. The Court has not considered it in ruling on the demurrer, and its analysis is confined to the allegations of the Complaint and matters properly subject to judicial notice.

IV. Analysis

A. Cause of Action One: Negligence (Veterinary Malpractice)

Defendants demur to Plaintiffs’ first cause of action on the grounds that it is uncertain in that it violates California Rules of Court, rule 2.112, which provides that each separately stated cause of

action must specifically state, *inter alia*, the party or parties to whom it is directed (e.g., “against defendant Smith”). (MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF DEFENDANTS DEMURRER TO PLAINTIFFS’ COMPLAINT (“Dem.”) at 7:12-14; Cal. Rules of Court, rule 2.112(4).) Defendants do not challenge the substantive sufficiency of the negligence allegations.

The Court finds merit in this argument.

While the first cause of action adequately alleges the elements of veterinary malpractice in the abstract, the underlying allegations are largely passive and collectively attributed. The Court does not hold that each allegation must be attributed to a specific defendant, nor that collective pleading is categorically impermissible where defendants are alleged to have acted in concert. However, the Complaint as pleaded leaves the Court and Defendants with insufficient notice of which conduct is attributed to which defendant.

The Complaint alleges that “Defendants established a special relationship with Plaintiff” and “breached their duty of care by incorrect and inadequate treatment and care below the minimum standard of care for veterinarians when they caused ZOË’s injuries and failed to adequately diagnose her condition all while misrepresenting her condition.” (Compl. at 4:25-28, 5:1.) The Complaint further alleges that “ZOË was not treated according to minimum standards of veterinary care as set forth above. Defendants then failed to properly address ZOË’s symptoms or properly diagnose the injuries and ailments. Defendants failed to properly monitor and medicate ZOË in a manner indicated by her blood test results.” (*Id.* at 5:3-7.)

While Plaintiffs “incorporate by reference the allegations of all [preceding] paragraphs[,]” the allegations even in the preceding paragraphs are limited in their attribution of specific negligent conduct to named defendants. (Compl. at 4:17-18.) For example, Plaintiffs in their “FACTS APPLICABLE TO ALL DEFENDANTS AND ALL CAUSES OF ACTION” section allege only that “[a]n initial assessment indicated possible pneumonia, and treatment began accordingly.” (Compl. at 3:6-7.) Similarly, they allege, “staff at VEG quickly recommended euthanasia, claiming [sic] the ZOË was in critical condition...” (*Id.* at 3:8-9), and “Plaintiffs were informed that the cause of the fluid in ZOË’s lungs was unknown but was likely a recurrence of her prior cancer—a presumption later confirmed to be incorrect.” (*Id.* at 3:12-14.) These allegations fail to identify which, if any, of the named Defendants is alleged to have acted.

The Complaint does go on to allege that “VEG staff, including TO and OGG, strongly discouraged the transfer and refused to facilitate it, stating that ZOË would not survive transfer” (Compl. at 3:15-18), “inquiries and voiced concerns were met with dismissiveness by VEG, OGG, and TO” (*Id.* at 3:23-24), and “the attending veterinarian Dr. TO, began contacting other facilities for transfer. However, upon information and belief, ZOË’s condition was misrepresented as too unstable for transfer” (*Id.* at 3:26-28), but these isolated instances in which the Complaint does attribute conduct to specific defendants serve to highlight rather than cure the ambiguity in the surrounding allegations. Where Plaintiffs demonstrate the capacity to plead with specificity, the absence of such specificity elsewhere leaves the Court and Defendants to speculate whether the unattributed conduct is alleged against all named

defendants, Doe defendants, or unidentified VEG staff not named as parties. This is precisely the uncertainty that Code of Civil Procedure section 430.10(f) is designed to address.

The Court notes that at least some greater specificity appears available on the face of the allegations. Plaintiffs allege they were in constant contact with the care team and made all decisions, even before returning to the country. (Compl. at 3:6-11.) Plaintiffs further allege that they were on-site, repeatedly expressed concerns directly to Defendants throughout Zoë's weeklong stay, and were present for ongoing communications about transfer and treatment decisions. (*Id.* at 3:15-4:3.) To the extent such information is reasonably ascertainable, the amended complaint should attribute the core alleged acts and omissions to the defendants or defendant responsible for each. Plaintiffs are not required to plead evidentiary detail, but the current level of generality is insufficient to apprise each defendant of the specific conduct alleged against them.

Accordingly, the demurrer to the first cause of action for negligence (veterinary malpractice) is **SUSTAINED WITH LEAVE TO AMEND.**

B. Cause of Action Two: Trespass to Chattels

The elements of trespass to chattels are (1) plaintiff's ownership or right to possess an item of personal property; (2) defendant intentionally damaged or interfered with plaintiff's use of the personal property; (3) plaintiff did not consent; (4) plaintiff was harmed; (5) and defendant's conduct was a substantial factor in causing plaintiff's harm. (*Intel Corp. v. Hamidi* (2003) 30 Cal.4th 1342, 1350-1352; CACI No. 2101, *Trespass to Chattels—Essential Factual Elements* (2026 ed.) *Judicial Council of California*.)

Defendants argue that Plaintiffs' claim for trespass to chattels fails on the grounds that they failed to plead facts establishing either intentional interference or lack of consent. (Dem. at 8:18-19.)

Defendants contend that Plaintiffs' own allegations establish consent, and that the conduct alleged amounts to, at most, negligence. (*Id.* at 8:19-9:1.)

As an initial matter, the Court does not accept Defendants' suggestion that Plaintiffs have failed to allege intent merely because they have not alleged intent to harm. Trespass to chattels lies where an intentional interference with the possession of personal property proximately causes injury. (*Thrifty-Tel, Inc. v. Bezenek* (1996) 46 Cal.App.4th 1559, 1566-1567.) Trespass to chattels is considered "the little brother of conversion." (*Ibid.*) As with conversion, the requisite intent is the intent to do the act that interferes with the property; a wrongful or malicious intent is not required. (*Taylor v. Forte Hotels Int'l* (1991) 235 Cal.App.3d 1119, 1124.) The deficiency in the instant claim lies not in the intent element but in the element of consent.

Plaintiffs' own allegations establish that they sought out emergency veterinary care, delivered Zoë to Defendants, and authorized her examination, treatment, and hospitalization. (Compl. at 3:5-11.) The conduct of which Plaintiffs now complain, including the administration of intravenous fluids, the recommendation of euthanasia, and the advice that Zoë was too unstable to survive transfer to another hospital, occurred within the course of that authorized treatment relationship. (*Id.* at 3:8-4:6.) Treatment rendered pursuant to the owner's authorization does not constitute an intentional

interference with possession, even where the owner contends the treatment was performed negligently. Plaintiffs here explicitly state that they “made all decisions for Zoë’s care.” (*Id.* at 3:11.) The gravamen of these allegations is that Zoë received substandard care, which sounds in professional negligence.

Plaintiffs’ contention that consent was vitiated because it was obtained through misrepresentations does not save the claim as presently pleaded. (Compl. at 6:14-16; Opposition Filed Re: to demurrer to demurrer to plaintiff’s complaint (“Opp.”) at 9:16-18.) Plaintiffs in their Complaint do not identify what misrepresentation induced their consent to any particular intervention, nor do they connect any specific misrepresentation to the consent allegedly procured by it. Even considering the misrepresentation allegations incorporated from Plaintiffs’ sixth cause of action under their intentional misrepresentation cause of action does not change this analysis. There, Plaintiffs allege that Defendants “continued to mislead Plaintiffs and specialty veterinarians as to ZOË’s true condition and her stability for purposes of transfer.” (Compl. at 10:23-26.) This allegation describes deception bearing on Plaintiffs’ decision of whether and when to transfer Zoë to another facility, not deception that induced Plaintiffs’ consent to the intravenous fluid administration or other intervention alleged to have caused Zoë’s injuries.

Plaintiffs’ allegation that they raised concerns about the intravenous fluids being administered to Zoë at the time of the treatment and felt those concerns were dismissed by Defendants likewise does not represent vitiation of consent. (Compl. at 3:20-24.) The Complaint does not describe Plaintiffs withdrawing consent at that time, nor does it describe any misrepresentations by Defendants that caused Plaintiffs to consent to treatments. The allegations instead describe treatment rendered with Plaintiffs’ consent, and a separate claim of deception affecting their transfer decision, neither of which establishes that consent to injury causing conduct was procured by misrepresentation. To the extent that Plaintiffs intend to pursue a vitiated consent theory, the current allegations are conclusory and substantially duplicative of fraud causes of action addressed below.

Berry v. Frazier (2023) 90 Cal.App.5th 1258 does not compel a different result. There, the plaintiff alleged that a veterinarian deliberately misrepresented the nature of a euthanasia procedure in order to obtain the plaintiff’s consent to an intracardiac injection performed on her conscious cat, a procedure the veterinarian knew would cause the cat extreme pain. The deception and the consent it garnered were directly connected – the misrepresentation induced consent to the very procedure that caused the harm. *Berry* thus illustrates the connection between misrepresentations and induced consent that is absent from the present Complaint. Plaintiffs here have not alleged that any specific misrepresentation induced their consent to a specific intervention that caused Zoë’s injuries.

Whether Plaintiffs can cure these defects is uncertain. As presently alleged, the conduct at issue occurred within an authorized course of veterinary treatment, and the authorities permitting recovery for trespass to chattels involving animals have generally involved intentional, wrongful injury inflicted by parties with no right to possess or treat the animal. (*Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590, 1607-1608.) Given that this is Plaintiffs’ initial complaint and the liberal standard governing leave to amend, however, the Court will afford Plaintiffs an opportunity to amend. To state

a viable claim, Plaintiffs must allege conduct falling outside the scope of the authorized treatment and may not simply recast negligence allegations in the language of intentional tort.

The Court further notes that the second cause of action suffers from the same collective pleading deficiency identified with respect to the first cause of action. The claim alleges that “Defendants, each and together, intentionally appropriated dominion and control over ZOË” (Compl. at 6:10-11) without identifying which defendant is alleged to have committed which intentional act. This deficiency is of particular significance in the context of an intentional tort, where the identity of the actor alleged to have formed the requisite intent is central to the claim. Any amended pleading must cure this deficiency consistent with the Court’s discussion above.

Accordingly, the demurrer to the second cause of action for trespass to chattels is **SUSTAINED WITH LEAVE TO AMEND**.

C. Cause of Action Three: Breach of Bailment

A bailment is the delivery of personal property to another for a special purpose, under a contract, express or implied, to carry out the purpose of the delivery. (*Gebert v. Yank* (1985) 172 Cal.App.3d 544, 550.) A bailment for the benefit of both parties is a bailment for hire and imposes on the bailee the duty to use ordinary care with respect to the bailed property. (*Id.* at 551.) Breach of the bailment contract may be asserted by the bailor when there is a failure to return that which was bailed. (*Ibid.*)

Plaintiffs allege they delivered Zoë to Defendants for hospitalization and treatment for labored breathing, that Defendants owed a duty to care for and return her in good health or at least in the same physical health she was in when tendered to Defendants, and that instead Zoë was returned in a “damaged condition as a result of Defendants’ negligence....” (Compl. at 3:5-6, 4:3-8, 7:7-20.)

The principal defect in this claim is that it is duplicative of the breach of contract cause of action. Both claims rest on the identical allegation that Defendants undertook not to harm Zoe and to exercise due care in her treatment. (*Compare* Compl. at 7:8-9 with Compl. at 8:7-9 [alleging identical undertaking not to harm Zoë].) Where a purported bailment claim relies on the same operative facts as a contract claim and merely recharacterizes the same alleged misconduct under a different label, it does not state an independent cause of action. (*Levy v. Only Cremations for Pets, Inc.* (2020) 57 Cal.App.5th 203, 215.) As currently pleaded, the bailment cause of action adds nothing not already captured by the negligence and contract claims and is consequently duplicative.

As Plaintiffs note, California permits the pleading of alternative and even inconsistent theories. (See *Tanforan v. Tanforan* (1916) 173 Cal. 270, 273-274; *Batta v. Hunt* (2024) 106 Cal.App.5th 295, 304.) Accordingly, Plaintiffs contend that they may pursue both negligence and bailment theories at this stage. (Opp. at 12:1-8.) The Court agrees with the principle but finds it inapposite. The alternative pleading doctrine permits a plaintiff who is uncertain which theory the evidence will support to plead distinct legal theories in the alternative. (*Batta, supra*, 106 Cal.App.5th at 304.) It does not relieve a plaintiff of the obligation to allege facts stating each separate cause of action, nor does it convert a single claim into two merely by affixing different labels.

The defect here is not that Plaintiffs have pleaded both a contract theory and a bailment theory; it is that the bailment cause of action, as alleged, sets forth no undertaking, duty, or operative facts distinct from the breach of contract claim. It pleads the same alleged promise not to harm Zoë a second time. A duplicative claim of that kind is not a permissible alternative theory; it is the same claim restated.

This conclusion is reinforced by the nature of the bailment theory itself. A bailment claim ordinarily turns on the bailee's failure to return the bailed property, or its return in damaged condition, from which a breach of the duty of ordinary care may be inferred. But unlike inanimate property, a living animal presented for emergency treatment in critical condition may decline despite competent care. The return of Zoë in worsened condition does not itself establish a breach of the bailee's duty, which is one of ordinary care, not a guarantee of the animal's physical outcome. To the extent the bailment claim rests on Zoë's having been returned in worse health than when she was tendered (Compl. at 7:11-15), it asserts a guarantee of outcome that the law does not imply into a veterinary treatment relationship.

The Court does not adopt the entirety of Defendants' reasoning, however. Defendants contend that the claim fails because Zoë was in fact returned and because Plaintiffs interfered with the bailment by overriding treatment recommendations and insisting on transfer. (Dem. at 10:8-18.) These arguments are less persuasive.

California recognizes that breach of bailment and negligence are distinct theories, and a bailee may bear the burden of showing the absence of negligence once the bailor establishes delivery in good condition and return in damaged condition. (*Gebert, supra*, 172 Cal.App.3d at 554.) Indeed, in *Gebert* the court permitted both a negligence theory and a breach of bailment theory to proceed. (*Ibid.*)

The interference argument also turns on disputed facts not properly resolved on demurrer; Plaintiffs allege that Zoë's injuries had already occurred and that their efforts were directed at mitigating harm and saving her life. (Compl. at 3:15-4:3.)

The Court further declines to rely on *Price v. Brown* (1996) 545 Pa. 216, 680 A.2d 1149, a non-binding decision of the Pennsylvania Supreme Court, and instead rests its analysis on California authority. (*Tindall v. County of Nevada* (2025) 112 Cal.App.5th 78, 88.) "Cases from other jurisdictions, turning as they do, on the constitutions, statutes and precedents of [other] states are of little help in determining our own problems in this field. We regard them as unpersuasive and need not consider them in this opinion." (*County of Santa Barbara v. City of Santa Barbara* (1976) 59 Cal.App.3d 364, 372.)

The deficiency, then, is not that a bailment theory is categorically unavailable against a veterinary provider, but that the claim as pleaded is wholly duplicative of the contract claim and rests on the identical undertaking. The claim also suffers from the collective pleading deficiency identified *ante*, as it attributes the alleged breach to "Defendants" without differentiation. (Compl. at 7:8-21.)

Because this is Plaintiffs' initial complaint and the defects may be curable, the Court grants leave to

amend. Any amended bailment claim must rest on facts distinct from those underlying the contract cause of action and may not simply restate the same undertaking under a different label.

Accordingly, the demurrer to the third cause of action for breach of bailment is **SUSTAINED WITH LEAVE TO AMEND**.

D. Cause of Action Four: Breach of Contract

The elements of a breach of contract cause of action are (1) the existence of a contract, (2) the plaintiff's performance or excuse for nonperformance, (3) the defendant's breach, and (4) damages to plaintiff caused by defendant's failure to perform. (*Tibeca Companies, LLC v. First American Title Ins. Co.* (2015) 239 Cal.App.4th 1088, 1109.)

Defendants first argue that Plaintiffs failed to plead, pursuant to Code of Civil Procedure 430.10(g), whether the contract is written, is oral, or is implied by conduct. (Dem. at 11:16-19.) This argument is unavailing. Plaintiffs explicitly allege that they entered into an oral and implied contract with Defendants. (Compl. at 8:5-9.) The nature of the asserted contract is therefore adequately identified, and the demurrer does not lie on that ground.

The claim is nonetheless deficient. The Complaint alleges that Defendants "agreed, in exchange for monetary compensation, to diagnose, treat, and hospitalize ZOË" and that Defendants "expressly or implicitly promised to do no harm and exercise due diligence in the performance of the services and the care of ZOË." (Compl. at 8:7-11.) Assuming the agreement to diagnose, treat, and hospitalize Zoë identifies a sufficiently definite undertaking, the Complaint does not allege that Defendants failed to perform it. To the contrary, Plaintiffs allege that Defendants did diagnose, treat, and hospitalize Zoë; their complaint is that Defendants did so negligently. (*Id.* at 8:14-15.)

The breach Plaintiffs plead, however framed, remains a breach of the professional duty of care rather than a distinct contractual obligation. In places the Complaint alleges that Defendants rendered treatment negligently (Compl. at 5:8-15, 8:14-15); in others it alleges a "failure to treat or diagnose ZOË's condition," and the giving of "improper treatment at inappropriate doses" (*Id.* at 5:18-21). But failure to diagnose, failure to treat, and negligent treatment are the paradigmatic breaches of the professional standard of care that underlie the malpractice claim.

California permits a hybrid claim in which the negligent performance of a contractual undertaking may give rise to both tort and contract liability. (*North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764, 774.) But such a claim requires a contractual obligation distinct from the general duty of care. The only term Plaintiffs identify beyond the agreement to diagnose, treat, and hospitalize Zoë is a promise "to do no harm and exercise due diligence[.]" which is not a bargained-for obligation with ascertainable content but a restatement of the professional duty of care. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 811 [terms are reasonably certain only if they provide a basis for determining the existence of a breach and an appropriate remedy].)

Whether Defendants are alleged to have performed the agreed services negligently, or to have failed to perform them at all, the wrong alleged is a departure from the standard of care, and the contract

claim identifies no independent contractual obligation that was breached.

Plaintiffs' allegations elsewhere that Defendants undertook to return Zoë "in good (or at least not worse) physical health" (Compl. at 7:11-13) and that "[s]he was to be returned in the same, if not better, condition following treatment" (*Id.* at 7:14-15), do not supply the missing contractual obligation. So construed, the alleged term is a promise that the patient would not deteriorate. As discussed in connection with the breach of bailment cause of action *ante*, the law does not imply into a veterinary treatment relationship a promise that a critically ill animal will not decline; such a term is a guarantee of outcome, not a bargained-for undertaking distinct from the professional duty of care. The Court accordingly rejects Defendants' broader suggestion that no contract claim may ever arise from veterinary services while concluding that the term Plaintiffs have alleged does not state one.

The claim also suffers acutely from the collective pleading deficiency identified *ante*. A breach of contract claim requires identification of the contracting parties and the breaching party. The Complaint alleges only that "Plaintiffs and Defendants entered into a valid contract" (Compl. at 8:5), without specifying which defendant agreed to which terms, whether the individual veterinarians contracted in their individual capacities or solely as agents of the entity, which defendant or defendants breached the contract, or how each is alleged to have done so. Where one defendant is a corporate entity, and two are individual professionals, the failure to differentiate is particularly significant to contract analysis.

Because this is Plaintiffs' initial complaint and the defects may be curable, the Court grants leave to amend. Any amended contract claim must identify the specific terms of the agreement, identify which defendant or defendants entered into and breached the agreement, and allege a contractual obligation, distinct from the professional duty of care underlying the negligence claim, that Defendants failed to perform.

Accordingly, the demurrer to the fourth cause of action for breach of contract is **SUSTAINED WITH LEAVE TO AMEND**.

E. Cause of Action Five: Intentional Infliction of Emotional Distress ("IIED")

A claim for IIED requires (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) For conduct to be outrageous it must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Ibid.*) IIED liability "does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051.) Although whether conduct is outrageous is usually a question of fact, many cases have sustained demurrers to IIED claims, concluding that the facts alleged do not amount to outrageous conduct as a matter of law. (*Bock v. Hansen* (2014) 225 Cal.App.4th 215, 235.)

Plaintiffs' IIED claim fails because the conduct alleged is not outrageous as a matter of law, and

because, under controlling authority, the conduct was directed at Zoë, the dog, not the Plaintiffs.

The conduct of which Plaintiffs complain consists of disputed treatment decisions and communications – the recommendation of euthanasia, the administration of intravenous fluids, the active discouragement of transfer, the dismissal of Plaintiffs’ concerns, and the representation that Zoë was too unstable to survive transfer. (Compl. at 9:5-21.) Even accepting these allegations as true as required on demurrer, they describe contested medical judgment and, at most, professional negligence. Medical judgment alleged to be mistaken, careless, or poorly communicated does not constitute conduct exceeding all bounds tolerated in a civilized community. (*Christensen, supra*, 54 Cal.3d at 903.) There are no allegations of threats, abuse, or cruelty directed at Plaintiffs for the purpose of inflicting emotional harm.

McMahon v. Craig (2009) 176 Cal.App.4th 1502 controls here. There, the plaintiff alleged that a veterinarian mishandled postoperative care, concealed the resulting complications, and was aware of the plaintiff’s close emotional attachment to her dog based on communications with both the plaintiff and the plaintiff’s friend on the subject. (*Id.* at 1507-1508.) The Court of Appeal affirmed dismissal of the IIED claim, holding that the alleged conduct was directed at the animal rather than the owner, that even the alleged concealment of malpractice was not outrageous as a matter of law, and that “[t]he contract between plaintiff and defendants to treat plaintiff’s dog did not by itself demonstrate defendants undertook a duty to protect plaintiff’s mental and emotional tranquility.” (*Id.* at 1503, 1509-1514.) The court reasoned that veterinary services are rendered to the pet and accordingly a veterinarian’s malpractice does not directly harm the owner in a manner creating liability for emotional distress. (*Id.* at 1510.)

Regardless of how foreseeable a pet owner’s emotional distress may be in losing a beloved animal, we discern no basis in policy or reason to impose a duty on a veterinarian to avoid causing emotional distress to the owner of the animal being treated, while not imposing such a duty on a doctor to the parents of a child receiving treatment.

(*McMahon, supra*, 176 Cal.App.4th at 1514.)

McMahon’s reasoning applies directly to the instant case. The treatment decisions Plaintiffs challenge, even if negligent and even if poorly communicated, were directed at Zoë’s care. The Complaint alleges no conduct undertaken for the purpose of causing Plaintiffs’ emotional distress.

Plaintiffs’ reliance on *Berry, supra*, 90 Cal.App.5th 1258, is misplaced. As noted in the trespass to chattels section of this ruling *ante*, in *Berry* the plaintiff alleged that a veterinarian deliberately misrepresented the nature of a euthanasia procedure in order to obtain the plaintiff’s consent to an intracardiac injection performed on her conscious cat, a procedure the veterinarian knew would cause the cat extreme pain. There, the court found that the veterinarian’s conduct could support an IIED claim because the conduct was designed to procure her consent to a specific procedure known to inflict suffering. (*Id.* at 1275.) Two features were essential to that holding, and both are absent here.

First the misrepresentation in *Berry* was made to procure the owner's consent to a specific procedure known to inflict extreme suffering – the deception and the painful procedure were inseparable. Here, although Plaintiffs allege that misrepresentations were made to them concerning Zoë's condition and her stability for transfer (Compl. at 10:18-25), those representations were not made to induce Plaintiffs' consent to a procedure known to cause extreme pain.

Second, the conduct in *Berry* was directed at the owner. By contrast, the conduct Plaintiffs allege consists of treatment decisions directed at Zoë's care, which under *McMahon* is legally insufficient to support the claim regardless of the resulting emotional harm to the owner. *Berry* thus illustrates the kind of intentional, owner-directed conduct designed to inflict suffering that is absent from this complaint.

Plaintiffs' reliance on *Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590, fares no better. *Plotnik* involved a neighbor who intentionally struck and injured the plaintiff's dog. The recovery there rested on an intentional, wrongful physical assault by a third party with no right to handle the dog, conduct categorically different from veterinary treatment rendered with the owner's authorization.

Because this is Plaintiffs' initial complaint, the Court grants leave to amend. The Court notes, however, that any amended claim will need to allege conduct materially distinct from the authorized veterinary treatment addressed in *McMahon*, including conduct that was directed at Plaintiffs and undertaken with the intent to cause, or in reckless disregard of causing, severe emotional distress. Whether Plaintiffs can allege such facts consistent with their existing allegations is uncertain.

Accordingly, the demurrer to the fifth cause of action for intentional infliction of emotional distress is **SUSTAINED WITH LEAVE TO AMEND.**

F. Cause of Action Six: Intentional Misrepresentation

The elements of intentional misrepresentation are: (1) misrepresentation; (2) knowledge of falsity (or scienter); (3) intent to induce reliance; (4) actual and justifiable reliance; and (5) resulting damage. (*Berry, supra*, 90 Cal.App.5th at 1268.) Like fraud, each element in a claim for intentional misrepresentation must be factually and specifically pled; general and conclusory allegations are insufficient. (*Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 519; *Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184.)

The policy of liberal construction of pleadings is not generally invoked to sustain a misrepresentation pleading defective in any material respect. [citation] Thus, the mere assertion of "reliance" is insufficient. The plaintiff must allege the specifics of his or her reliance on the misrepresentation to show a bona fide claim of actual reliance. [citation]

(*Cadlo, supra*, 125 Cal.App.4th at 519.)

The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were tendered. (*Lazar v. Superior Court* (1996) 12 Cal.4th

631, 645; *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) When asserting such a claim against a corporate defendant the burden is greater; the plaintiff must also allege “the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made.” (*West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 793.)

Plaintiffs’ claim does not satisfy this standard. The Complaint alleges that “Defendants made numerous misrepresentations to Plaintiffs including the representations to other veterinarians regarding ZOË’s status, her ability to be transferred, and her need to be euthanized,” and that Defendants “continued to mislead Plaintiffs and specialty veterinarians as to ZOË’s true condition and her stability for purposes of transfer.” (Compl. at 10:20-26.) These allegations do not identify which defendant made any particular representation, when or by what means it was made, or, as to VEG, the person who made it and that person’s authority to speak. The collective attribution of the alleged misrepresentations to “Defendants” is particularly problematic in the fraud context, where the heightened pleading standard exists precisely to require individualized allegations.

Plaintiffs invoke the principle that less specificity is required when the facts underlying the fraud lie more within the defendant’s knowledge than the plaintiff’s. (*Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1469; *Tenet Healthsystem Desert, Inc. v. Blue Cross of California* (2016) 245 Cal.App.4th 821, 838.) That principle has some application here, as certain of the alleged misrepresentations, those made to other veterinary facilities, occurred outside of Plaintiffs’ presence. But the relaxation of specificity goes to the level of evidentiary detail, not to the threshold obligation to identify which defendant made a representation, to whom, and in substance what was said. Moreover, Plaintiffs allege that they were present at the veterinary hospital throughout Zoë’s stay and in direct communication with her care team, so the representations made to them are not beyond their knowledge. The above principle does not excuse the deficiencies here.

A further difficulty concerns the audience of the alleged misrepresentations. An intentional misrepresentation claim requires the plaintiff’s own actual and justifiable reliance. (*Berry, supra*, 90 Cal.App.5th at 1268; *Cadlo, supra*, 125 Cal.App.4th at 519.) Several of the misrepresentations Plaintiffs identify, including “VEG’s continued use of scare tactics and cost-related discouragement,” were by Plaintiffs’ own allegations communications directed to the potential transfer hospitals, rather than to Plaintiffs. (Compl. at 3:25-4:2.) Representations made to third parties cannot support the claim absent allegations that Plaintiffs themselves relied on them. And even if Plaintiffs were somehow contemporaneously aware of what Defendants were allegedly communicating to the potential transfer hospitals, their own allegations tend to establish that they did not rely on it: Plaintiffs allege they continued to seek a willing transfer hospital and ultimately secured one “despite” this discouragement. (*Ibid.*) Conduct undertaken in defiance of a representation is not reliance upon it.

The Court does not, however, accept Defendants’ contention that the claim necessarily fails because it merely restates the malpractice allegations. (Dem. at 17:6-11.) Plaintiffs allege a reliance theory distinct from their negligence claim: that the misrepresentations caused them to delay transferring

Zoë to another facility, and that they would have acted differently and sought specialty care sooner had they known Zoë's true condition. (Compl. at 11:4-14.) The claim is nonetheless deficient in a respect beyond specificity. Although the Complaint alleges that Defendants knew or recklessly disregarded the falsity of their representations (*Id.* at 10:27-11:3), it does not allege that Defendants made representations with the intent to induce Plaintiffs' reliance, a distinct and essential element of the cause of action. While intent may be alleged generally and is ultimately a question of fact, the Complaint must still allege the element, and as pleaded it does not. (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1061.)

Because this is Plaintiffs' initial complaint and the deficiencies may be curable, the Court grants leave to amend. Any amended claim must allege, as to each Defendant, the specific misrepresentations made, the person who made it and the person's authority to speak for the entity, when and by what means it was made, that the representation was made with intent to induce Plaintiffs' reliance, and facts establishing Plaintiffs' own justifiable reliance.

Accordingly, the demurrer to the sixth cause of action for intentional misrepresentation is **SUSTAINED WITH LEAVE TO AMEND**.

G. Cause of Action Seven: Fraudulent Concealment

The elements of fraudulent concealment are (1) concealment or suppression of an important, material fact; (2) the defendant had a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1246; *Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.) Fraud, including fraud by concealment must be pleaded with specificity; general and conclusory allegations do not suffice, and the policy of liberal construction of pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. (*Small, supra*, 30 Cal.4th at 184; *Lazar, supra*, 12 Cal.4th at 645; *West, supra*, 214 Cal.App.4th at 793.) Courts recognize that the requirement of specificity is relaxed somewhat as applied to concealment, because it is difficult to plead with exactitude the time, place, and manner of something that was not said. (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384.) Nonetheless, the claim must allege the substance of what was concealed, the defendant or defendants who concealed it, and the facts establishing the remaining elements. (*Ibid.*)

Here, Plaintiffs have adequately alleged a duty to disclose. The Complaint alleges that Defendants entered into a veterinarian-client-patient relationship and a bailment relationship with Plaintiffs. (Compl. at 12:8-12.) A veterinary care relationship of that kind is sufficient at the pleading stage to support a duty to disclose material facts concerning the animal patient's condition.

Defendants' contention that the claim is internally contradictory does not provide a basis to sustain. (Dem. at 18:16-23.) Defendants argue that the Complaint concedes disclosure, that Zoë was too

unstable to transfer, while simultaneously alleging concealment. (*Ibid.*) But disclosing an animal's initial critical status is not logically inconsistent with concealing a subsequent worsening of her condition. The two allegations may coexist.

The claim nonetheless fails for two reasons. First, it suffers from the same deficiencies in specificity and individualized attribution identified with respect to the sixth cause of action. The Complaint alleges that:

Defendants intentionally failed to disclose facts to Plaintiffs and specialty veterinarians by misrepresentations and omissions... Defendants failed to disclose to Plaintiffs ZOË's true condition while providing treatment, namely, her worsening condition. It was not until multiple days of additional unnecessary care at Defendants' facility that they informed Plaintiffs that ZOË needed additional specialty care.

(Compl. at 11:27-12:5.)

The Complaint does not identify which defendant possessed and concealed the undisclosed information, when the duty to disclose arose, or, as to VEG, the individual responsible. While the specificity required of a concealment claim is relaxed, that relaxation does not excuse the collective attribution of the concealment to "Defendants" without individuation.

Second, the Complaint does not adequately allege intent to defraud. The third element of a fraudulent concealment claim requires that the defendant intentionally concealed the fact with the intent to defraud the plaintiff. (*Aton Center, Inc., supra*, 93 Cal.App.5th at 1246; *Boschma, supra*, 198 Cal.App.4th at 248.) The Complaint alleges that Defendants "intentionally failed to disclose to Plaintiffs" Zoë's "worsening condition." (Compl. at 11:27-12:2.) But an allegation that nondisclosure was intentional addresses only the deliberate character of the omission; it does not allege that the concealment was undertaken with the intent to defraud Plaintiffs or induce them to act or refrain from acting. While intent to defraud may in appropriate circumstances be inferred from the deliberate withholding of a material fact a defendant was bound to disclose, and while intent is ultimately a question of fact (*Beckwith, supra*, 205 Cal.App.4th at 1061), the conclusory allegation of intentional nondisclosure here does not supply the requisite intent to defraud.

Because this is Plaintiffs' initial complaint and the deficiencies may be curable, the Court grants leave to amend. Any amended claim must allege, as to each defendant, the specific material fact concealed, the defendant who concealed it and (as to the entity, VEG) the individual responsible, the basis and timing of the duty to disclose, facts showing the concealment was undertaken with intent to defraud, and facts establishing Plaintiffs' resulting harm.

Accordingly, the demurrer to the seventh cause of action for fraudulent concealment is **SUSTAINED WITH LEAVE TO AMEND**.

V. Conclusion

For the foregoing reasons, Defendants' demurrer is **SUSTAINED IN ITS ENTIRETY WITH LEAVE TO AMEND.**

Plaintiffs have 15 days from the date of entry of this order to file and serve any amended pleading.

10. 9:00 AM CASE NUMBER: C25-03334
CASE NAME: DAVID CHEW VS. VETERINARY EMERGENCY GROUP,
***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S COMPLAINT**
FILED BY: VETERINARY EMERGENCY GROUP,
TENTATIVE RULING:

Before the Court is Defendants Veterinary Emergency Group ("VEG"), Melissa, Ogg, D.V.M., and Rosella To, D.V.M.'s (collectively "Defendants") motion to strike. The motion to strike relates to Plaintiffs David Chew and Jean Lee's (collectively "Plaintiffs") Complaint for (1) negligence (veterinary malpractice); (2) trespass to chattels; (3) breach of bailment; (4) breach of contract; (5) intentional infliction of emotional distress; (6) intentional misrepresentation; and (7) fraudulent concealment.

Defendants move to strike Plaintiffs' claims for (1) punitive/exemplary damages; and (2) emotional distress/general pain-and-suffering damages. They do so on the grounds that (1) Plaintiffs' claims for general/emotional distress are not recoverable by law; and (2) Plaintiffs' punitive damage claim under Civil Code section 3340 is defective.

Plaintiff opposes Defendants' motion to strike, arguing that general/emotional distress damages are supported by law, punitive damages under Civil Code section 3340 are properly pled and supported by law, and determining whether the facts support a claim of gross negligence is a premature factual determination.

Defendant's motion to strike is **GRANTED IN ITS ENTIRETY WITH LEAVE TO AMEND.**

Plaintiffs have 15 days from the date of entry of this order to file and serve any amended pleading.

I. Factual Allegations

This case arises out of a dispute over allegedly negligent veterinary medical care.

Plaintiffs David Chew and Jean Lee were the owners of an 11-year-old French Bulldog named Zoë. (Initial Complaint ("Compl.") at 2:5-6.) On November 13, 2024, Zoë presented to Veterinary Emergency Group in San Ramon, California, for labored breathing. (*Id.* at 3:5-6.) Plaintiffs' parents were pet sitting Zoë at the time of her presentation to VEG as Plaintiffs were out of the country, however Plaintiffs returned quickly upon learning of Zoë's condition. (*Id.* at 3:9-11.) Despite initially being out of the country, Plaintiffs were in direct contact with veterinary staff at VEG such that they made all care decisions. (*Ibid.*)

Upon her arrival to VEG, staff allegedly diagnosed Zoë with possible pneumonia, assessed her condition as "critical," and recommended euthanasia. (Compl. at 3:6-9.) VEG staff allegedly communicated to Plaintiffs that there was fluid in Zoë's lungs of an unknown nature, though it was "likely a recurrence of her prior cancer." (*Id.* at 3:12-14.) Plaintiffs allege that this presumption was